

25NWCV01601 25NWCV01601

County: los-angeles

Division: Civil Law and Motion

Department: L

Hearing date: 2026-09-15

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Case Number: 25NWCV01601 Hearing Date: September 15, 2026 Dept: L

MAXINE

CARRASCO vs GABRIEL DEL ANGEL DOMINGUEZ, et al.

CASE NO.: 25NWCV01601

HEARING: September 15, 2026 @ 9:30

a.m.

#18

TENTATIVE ORDER

Plaintiff Maxine Carrasco's

Motion to Compel Further Responses and Document Production from Defendant

Gabriel Del Angel Dominguez is GRANTED.

Plaintiff to give notice.

Background

This is a motor vehicle

negligence action involving an accident that occurred on June 14, 2023. On May 5, 2025, Plaintiff Maxine Carrasco ("Plaintiff") filed this action against Defendants Gabriel Del Angel Dominguez, Del Angel Trucking, and Does 1 to 100. The Complaint alleges two causes of action for 1) Negligence and 2) Negligence (California Vehicle Code § 21703).

On June 26, 2025, Plaintiff

served Defendant Gabriel Del Angel Dominguez (hereinafter, "Dominguez") with Requests for Production, Set Two ("RFPs"). (Ortiz Decl., ¶ 4, Exh. A.)

On September 11, 2025, Dominguez served responses to the RFPs. (Ortiz Decl., ¶ 5, Exh. B.) On November 13, 2025, Dominguez served unverified supplemental responses to the RFPs. (Ortiz Decl., ¶ 7, Exh. D.)

Plaintiff now moves to compel Dominguez's further responses to RFP Nos. 5, 6, and 16, involving surveillance/sub rosa information.

Legal Standard

Code of Civil Procedure section 2031.210 states the following:

"(a) The party to whom a demand for inspection, copying, testing, or sampling has been directed shall respond separately to each item or category of item by any of the following:

(1) A statement that the party will comply with the particular demand for inspection, copying, testing, or sampling by the date set for the inspection, copying, testing, or sampling pursuant to paragraph (2) of subdivision (c) of Section 2031.030 and any related activities.

(2) A representation that the party lacks the ability to comply with the demand for inspection, copying, testing, or sampling of a particular item or category of item.

(3) An objection to the particular demand for inspection, copying, testing, or sampling."

(Code Civ. Proc., § 2031.210, subd. (a).)

On receipt of responses to a demand for production, the demanding party may move for an order compelling a

further response if that party finds 1) a statement of compliance with the demand is incomplete, 2) the response is inadequate, incomplete, or evasive, or 3) an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).)

Meet and Confer

A motion to compel further responses to requests for production shall be accompanied by a meet and confer declaration under Section 2016.040. (Code Civ. Proc., § 2031.310, subd. (b)(2).)

On September 26, 2025, Plaintiff served a meet and confer letter to Dominguez regarding his initial responses. (Ortiz Decl., ¶ 6, Exh. C.) After Dominguez served his supplemental responses, Plaintiff served another meet and confer letter, particularly discussing the sub rosa materials requests. (Ortiz Decl., ¶ 8, Exh. E.) The parties thereafter agreed to extend Dominguez's response deadline and Plaintiff's motion to compel deadline. (Ortiz Decl., ¶ 9, Exh. F.) Although the parties thereafter attempted to meet and confer, they were unable to come to a resolution. (Ortiz Decl., ¶ 10.) Plaintiff thus requested an Informal Discovery Conference, which took place on April 27, 2026. (Ortiz Decl., ¶¶ 11-12, 14.) The parties were unable to come to an agreement. (Ibid.)

The Court finds that the meet and confer requirement has been met.

Discussion

Plaintiff moves to compel Dominguez's further responses to the following RFPs:

- RFP

No. 5: All color photographs or videos taken of PLAINTIFF from the date of the INCIDENT through present.

- RFP

No. 6: A copy of all sub rosa films taken of PLAINTIFF as a result of the INCIDENT.

- RFP

No. 16: All Accident/Investigation reports in connection with this INCIDENT.

Dominguez primarily objected to these RFPs on grounds that they seek information that is protected by attorney-client privilege and the work product doctrine. Dominguez argues that photographs or films reflecting counsel's strategies in preparation for trial—e.g., video or surveillance film impeaching plaintiff's claim of injury—should be treated as “qualified” work product. Plaintiff must show that that she would be unduly prejudiced without such discovery. Dominguez further responded that he “should not be required to disclose whether such a video exists until after [P]laintiff has been deposed. This would allow [Dominguez] to impeach plaintiff at deposition, while still allowing plaintiff the opportunity to obtain said video for trial.” (See Sep. Statement.)

Plaintiff firstly argues that the attorney-client privilege does not apply to surveillance evidence, citing *Suezaki v. Superior Court of Santa Clara County* (“Suezaki”) (1962) 58 Cal. 2d 166. Specifically, the Suezaki court found that sub rosa materials are not a “communication” for purposes of the attorney-client privilege and that a photograph does not become privileged by the mere fact that it was taken for the purpose of litigation and eventually transmitted to counsel.

Next, Plaintiff argues that the work product doctrine does not bar discovery of the sub rosa materials. The materials do not constitute a “writing that reflects an attorney's impressions, conclusions, opinions, or legal research or theories is not discoverable under any circumstances” under Code of Civil Procedure section 2018.030, subdivision (a). In other words, the materials are not entitled to absolute protection. Thus, assuming the work product doctrine applies, the sub rosa materials would only be subject to qualified protection under Code of Civil Procedure section 2018.030, subdivision (b). Under *Suezaki*, whether work product is entitled to qualified protection should be determined on a case-by-case basis, considering all factors. Plaintiff argues that “[she needs] the surveillance evidence obtained by [Dominguez] to protect against surprise and to prepare to examine the person who took the video/photographs” and that such evidence will “allow Plaintiff[] to review the materials for authenticity and otherwise prepare effectively for trial, and it may also even encourage settlement of the suit, a legitimate function of pre-trial discovery.”

(Mot., 8:4-10.)

Plaintiff additionally argues that Dominguez's intention to use the surveillance evidence to impeach Plaintiff at her deposition is not a proper objection. Plaintiff cites *Atchison, Topeka & S. F. Ry. Co. v. Superior Court* ("Atchinson") (1962) 208 Cal. App. 2d 73, 77.

In opposition, Dominguez initially clarifies that, he does not oppose producing the sub rosa materials all together. Rather, during meet and confer discussions, Dominguez offered to produce the materials 48 hours after the deposition of Plaintiff. (Arshansky Decl., ¶ 3.) Dominguez argues that, at the Informal Discovery Conference, the Court discouraged Plaintiff from filing a motion to compel and suggested that the parties meet and confer on the issue. (Arshansky Decl., ¶ 5.) Dominguez cites to federal cases in arguing that "allowing discovery of surveillance materials after the deposition of the plaintiff, but before trial, best meets the ends of justice and the spirit of the discovery rules to avoid surprise at trial." (Opp., 4:1-3.)

Dominguez emphasizes that the *Suezaki* court found that sub rosa materials should be treated as qualified work product, advising that trial courts must weigh all circumstances in determining whether the discovery would serve the interests of justice. Dominguez also argues that the *Atchinson* case did not analyze how the work product doctrine applied to production of sub rosa materials. At the time *Suezaki* and *Atchinson* were decided, the qualified work product doctrine was not yet codified—the prior standard of "good cause" has evolved into "unfair prejudice" under the qualified protection provision. Thus, the burden is on Plaintiff to overcome qualified work product protection by demonstrating unfair prejudice if the sub rosa materials are not produced. Plaintiff has failed to do so—Plaintiff's own actions cannot cause her own surprise. Dominguez further cites to various California superior court decisions to support his contention that the Court should order that Defendant need only produce the sub rosa materials after Plaintiff's deposition to preserve their impeachment value.

In reply, Plaintiff reiterates that surveillance evidence is not absolutely privileged. To the extent that the sub rosa materials have qualified protection as work product, Plaintiff argues that she will be unfairly prejudiced in preparing her case. Plaintiff argues

that she “should be allowed to review the material to properly prepare Plaintiff for her deposition and prevent any unfair surprise.” (Reply, 3:17-18.)

The Court finds that the Suezaki case is instructive here. That case involved the issue of whether surveillance footage of a plaintiff in a personal injury action, taken by an independent investigator engaged by defense counsel, was protected by the attorney-client privilege and/or the work product doctrine. The Supreme Court held that the attorney-client privilege did not apply to the sub rosa footage, finding that 1) the footage did not become privileged by the mere fact that it was taken for the purpose of litigation by a party and transmitted to that party’s attorney and 2) the footage is not attorney-client “communication.” (Suezaki, supra, 58 Cal. 2d at pp. 176-177.)

Similarly, here, the Court finds that the sub rosa materials are not protected by the attorney-client privilege on grounds that such materials are not a “communication.”

As to the issue of whether the work product doctrine applied, the Supreme Court held that “the fact that the material sought to be discovered is the ‘work product’ of the attorney is one factor to be used by the trial court in the exercise of its discretion in determining whether or not discovery should be granted. It does not mean that, simply because the material involved is the ‘work product’ of the attorney, it can or should deny discovery. Something more must exist. The trial court must consider all the relevant factors involved and then determine whether, under all the circumstances, discovery would or would not be fair and equitable.” (Suezaki, supra, 58 Cal. 2d at p. 178.) The Supreme Court ultimately remanded the case to the trial court to decide whether the surveillance footage was discoverable under this standard. (Id. at p. 179 [“While it would appear that inspection of the films should be permitted, the discretion granted by the statute is the discretion of the trial court, not of this court.”].)

The Court notes that, although Suezaki was decided before the principle of qualified protection based on the work product doctrine was codified, its principles still apply. Work product statutes are “intended to be a restatement of existing law relating to protection of work product” and are “not intended to expand or reduce the extent to which work product is discoverable.” (Code Civ. Proc., §

2018.040.)

Code of Civil Procedure section 2018.030
states the following:

“(a) A
writing that reflects an attorney's impressions, conclusions, opinions, or
legal research or theories is not discoverable under any circumstances.

(b) The
work product of an attorney, other than a writing described in subdivision (a),
is not discoverable unless the court determines that denial of discovery will unfairly
prejudice the party seeking discovery in preparing that party's claim or
defense or will result in an injustice.”

(Code Civ. Proc., § 2018.030,
emphasis added.)

Dominguez asserts that Plaintiff
has failed to establish “unfair prejudice” under Code of Civil Procedure
section 2018.030, subdivision (b) because 1) he is willing to produce the
materials after Plaintiff's deposition, and 2) Plaintiff is not subject to any
surprise because she is aware of her own actions that might be revealed through
the sub rosa materials. Plaintiff argues that she will be unfairly prejudiced
if the sub rosa materials are not produced before her deposition because she
will not be able to examine the authenticity of the footage and prepare for the
deposition.

The Court finds that the parties do
not necessarily dispute that the sub rosa materials are entitled to qualified
protection under the work product doctrine. The Court finds that the factors
weigh in favor of production. The work product doctrine exists to “[p]reserve
the rights of attorneys to prepare cases for trial with that degree of privacy
necessary to encourage them to prepare their cases thoroughly and to
investigate not only the favorable but the unfavorable aspects of those cases.”
(Code Civ. Proc., § 2018.020.) This right is minimally invaded by the sub rosa
materials at issue. Dominguez's strategy embodied in the requested footage is
readily apparent even before the footage is produced—the footage exists
to impeach and otherwise cast doubt on the nature and extent of Plaintiff's
claimed injuries. Dominguez essentially admits to this use by requesting that

the materials be produced after Plaintiff's deposition. Dominguez has not otherwise demonstrated how the materials will reveal any detailed opinions, research, theories, or trial strategies of counsel. Plaintiff states that she would be unfairly prejudiced because she will be unable to challenge the sub rosa material's authenticity and prepare for trial. Lastly, as noted, Dominguez does not object to producing the materials all together.

The Court notes that the parties primarily dispute the timing of production. Dominguez argues that he should not have to produce the sub rosa materials until after Plaintiff's deposition in order to preserve their impeachment value. The Court does not opine on the timing of the production—a motion to compel further only deals with whether a further response is warranted. Dominguez has not moved for a protective order, which may affect the timing of production.

Accordingly, Plaintiff's Motion to Compel Further Responses and Document Production from Defendant Gabriel Del Angel Dominguez is granted.

The parties are encouraged to meet and confer further regarding the timing issue.

Sanctions

"[T]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2031.310, subd. (h).)

Plaintiff requests sanctions in the amount of \$3,500.00, plus \$123.00 filing fees.

In opposition, Dominguez requests sanctions in the amount of \$2,137.50.

Under the circumstances, the Court declines to issue monetary sanctions.